GOSPEL OF GOD CHURCH INTERNATIONAL
versus
J. MUNAMATI N.O
and
MINISTER OF HOME AFFAIRS & CULTURAL HERITAGE
and
MAGAGA MASEDZA
and
REUBEN MASEDZA

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 10 April & 5 May 2026

Urgent Court Application

S. M. Hashiti with *E. Mubaiwa* & *B. Pabwe*, for the applicant
R. Madiro, for the 1st & 2nd respondents
T. L. Mapuranga with *N. Mushangwe*, for the 3rd & 4th respondents

DEMBURE J: This is an urgent court application for declaratory and other ancillary relief. The application was brought in terms of s 4(1) of the Administrative Justice Act [*Chapter 10:28*]. On 10 April 2026, the court, after hearing submissions from counsel for the applicant and the third and fourth respondents, upheld the applicant's point *in limine* and dismissed the third and fourth respondents' application for condonation. I further expunged the third and fourth respondents' purported opposition from the record and proceeded to deal with the matter as unopposed. This also followed Ms *Madiro*'s concession that the first and second respondents were no longer opposed to the application. I proceeded to issue the following operative order:

> "1. It is declared that the decision of first respondent dated 10 March 2026 giving authority to third and fourth respondents to exhume the remains of the late Peter Jack Masedza also known as Baba Johanne Masowe from applicant's shrine in Gandanzara, Rusape, is in violation of section 3 (1) of the Administrative Justice Act and is accordingly set aside.
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> 2. The issue of whether the remains of Peter Jack Masedza also known as Baba Johanne Masowe should be exhumed shall be determined by second respondent in accordance

with the provisions of section 38 (4) of the Cemeteries Act and after due consideration of all objections placed before him.

Consequently, it is ordered that:

3. Before determining the issue in terms of paragraph 2 above, second respondent shall invite, receive and consider submissions from all parties and their legal representatives on all issues that concern or arise from the Cemeteries Act or any other law relevant to the matter.
4. Second respondent's determination shall be accompanied by full written reasons which shall be availed to the parties simultaneously with the determination.
5. Third and fourth respondents shall pay the costs of suit jointly and severally, the one paying, the other to be absolved."

On 30 April 2026, I was alerted by the Registrar through the system that written reasons for my decision were required for the record, as the third and fourth respondents had lodged an appeal against this court's decision in the Supreme Court. The following are the full written reasons for the court's decision.

FACTUAL CONSPECTUS

The applicant, Gospel of God Church International, is a common law *universitas* with the capacity to sue or be sued in its own name. The first respondent is J. Munamati, cited in his official capacity as Provincial Registrar, who made the relevant decision impugned by the applicant. The second respondent is the Minister of Home Affairs and Cultural Heritage, and, from his averments, he clearly presented himself as the responsible authority or the Minister assigned by the President to administer the Cemeteries Act [*Chapter 5:04*]. He confirmed suspending the decision made by the first respondent pending the determination of this matter and undertook to abide by and comply with the decision of this court in relation to the cause before me. The third and fourth respondents are Magaga Masedza and Reuben Masedza, respectively, who are the surviving adult male children of the late Peter Jack Masedza, also known as "Baba Johanne Masowe".

The third and fourth respondents and the applicant have been in and out of court fighting over the remains of the late Johanne Masowe, who died in 1973. After his death, he was buried at the applicant's shrine in Gandanzara, Rusape, where his remains lie to this date. In 2003, the third respondent applied to this court for access to visit his father's burial place. The application

was, however, dismissed by HUNGWE J (as he then was), who declined to grant him the right to visit the shrine on land owned by the applicant without its consent. See *Masedza* v *Gospel of God Church* HH 164/03.

In 2023, the third and fourth respondents launched another application seeking an order directing the Minister of Local Government to issue a reburial permit for the exhumation of the remains of the late Johanne Masowe from the grave site at Gandanzara for reburial and other ancillary relief. On 6 February 2025, this court, before CHITAPI J, refused to usurp the statutory powers of the Minister in terms of s 38(4) of the Cemeteries Act to order the exhumation of the remains of the late church leader, but declared that the third and fourth respondents had the right as his children to seek the order for his exhumation and reburial. The court ordered that the third and fourth respondents had the right to exhume the remains of the late Johanne Masowe, subject to them following due process. See *Masedza & Anor* v *Gospel of God Church International & Ors* HH 64/25.

The applicant appealed against the decision in the Supreme Court. The appeal was dismissed on 9 December 2025. The Supreme Court confirmed this court's decision and held that the third and fourth respondents did not obtain substantive relief for the exhumation. It upheld that they had the right to seek exhumation from the proper forum. The order of this court was found not to have defined any substantive rights of the parties, and that the applicant had no cause to appeal. The court did not grant an exhumation order but merely allowed the parties to ventilate their right in the right forum. It would only be after a decision by the Minister in terms of the Cemeteries Act that any aggrieved party would approach the courts for appropriate relief. See *Gospel of God Church International* v *Masedza & Ors* SC 112/25.

There was no dispute that on 10 March 2026, the first respondent granted authority for the exhumation and reburial of the remains of the late Johane Masowe. It was reasoned that the authority to exhume the remains had already been granted by this court before CHITAPI J and subsequently confirmed by the Supreme Court in the case cited above. The applicant became aware of the first respondent’s decision on 25 March 2026 after the third and fourth respondents’ legal practitioners communicated it to the applicant. It also became aware that the third and fourth respondents intended to exhume the remains on 2 April 2026. This led the applicant to approach this court with this urgent court application filed on 30 March 2026.

The applicant averred that the first respondent's decision was unlawful and, therefore, invalid. It was contended that it was not made in terms of any law and was in violation of s 3(1) of the Administrative Justice Act, as the first respondent did not proceed in terms of s 38 of the Cemeteries Act. It was also argued that the High Court or the Supreme Court did not issue any exhumation order as purported by the first respondent. The decision, it was also contended, was invalid for lack of reasons and for gross irrationality, as no judgment existed authorising the exhumation as claimed. The applicant sought the relief on an urgent basis.

The first respondent initially opposed the application. The opposing affidavit was deposed to by one Henry Tawona Machiri, who alleged that he was the Registrar General and was authorised to depose to the affidavit on behalf of the first respondent. It was confirmed that the first respondent acted on the instructions of her administrative head of the Ministry of Home Affairs and Cultural Heritage. She alleged that the letter instructing her to issue authority for the exhumation was dated 19 February 2026. See p 145 of the record. She also claimed that there was no objection from all the relevant stakeholders.

The second respondent confirmed that he will abide by the court's decision and, to ensure the judicial process is not undermined, had taken steps to stay the execution of the impugned action by his official pending the final determination or direction of the court. He undertook not to undertake any further process that may prejudice any party or undermine the authority of the court.

the matter was set down for hearing on 1 April 2026. Following representations from the counsels for the parties, the court, with the parties' consent and in line with the timelines they had proposed themselves, issued a case management order directing when the parties would file their outstanding papers. Since the agreed date of the hearing was after the scheduled exhumation date, there was also no objection to the court issuing an interim order to stay any further exhumation process pending the determination of the matter. The court accordingly issued the following case management order:

> "1. The exhumation and reburial of the late Johanne Masowe (Peter Jack Masedza), scheduled on 2 April 2026, is hereby stayed pending the determination of this matter.
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> 2. The 3rd and 4th respondents shall file their opposing papers to the application before end of today, 1 April 2026.

3. The applicant shall file its answering affidavit and heads of argument before end of day on 2 April 2026.
4. The 1st and 2nd respondents shall file their heads of argument by end of day on 3 April 2026.
5. The 3rd and 4th respondents shall file their heads of argument by end of day on 2 April 2026.
6. The matter shall be heard and determined virtually on Tuesday, 7 April 2026 at 10:00 am."

The third and fourth respondents filed their opposition on 2 April 2026. In their opposing affidavit, they raised several points *in limine, inter alia* challenging the validity of the proceedings, the urgency of the matter and that there was no cause pleaded in the founding affidavit. On the merits, they contended that the exhumation decision was properly and lawfully made. They argued that the Minister or any person authorised by him could make the decision in terms of s 38(4) of the Cemeteries Act. They averred that the first respondent, being an official of the Ministry and duly authorised, thereby decided the matter properly. It was contended that the application lacked merit, as the first respondent, before making the decision, had considered all objections received by the second respondent and taken them into account. Several averments were made in opposition to the grounds of the application and the relief sought. They finally prayed for the dismissal of the application with costs on a legal practitioner and client scale. The parties also filed further papers, and the hearing was deferred to 10 April 2026.

On 10 April 2026, Ms *Madiro*, for the first and second respondents, confirmed to the court that they were not opposed to the application and had nothing further to submit in heads of argument. She further submitted that the first and second respondents will abide by the court's decision.

In relation to the third and fourth respondents, the only parties left opposing the application, a point of law was raised in the heads of argument that they were barred for non-compliance with the case management order issued on 1 April 2026. In particular, the point *in limine* was that, having been barred, their opposition was fatally defective as it was filed out of time or in breach of the court order. They were, therefore, non-suited, and the application was unopposed. The parties' legal practitioners made the following submissions on the point *in limine.*

THE PRELIMINARY QUESTION

WHETHER THE THIRD AND FOURTH RESPONDENTS' OPPOSITION WAS PROPERLY BEFORE THE COURT

SUBMISSIONS MADE FOR THE PARTIES

Mr *Mubaiwa*, for the applicant, submitted that they took the point that the third and fourth respondents are barred and they cannot be heard before me. He argued that the court issued a case management order prescribing timelines for the filing of papers by all parties. The third and fourth respondents defied that order. The opposing papers were filed a day out of time as were the heads of argument. So, they are not before the court. The delay means that no notice of opposition was filed. No defence is, therefore, on record. It is different from a delay or non-filing of heads of argument, in which case there is a defence on record. Counsel referred me to the case law authorities cited in the heads of argument. I was also referred to the case of *GMB* v *Muchero* 2008 (1) ZLR 216 (S), which deals with the distinction between a failure to file an opposition and a failure to file heads of argument.

Counsel argued that there was actually nothing on which the third and fourth respondents could make an appearance before the court. This point was taken in the answering affidavit and in the applicant's heads of argument. Counsel for the respondents brushed it aside in his heads of argument and said nothing. The approach is casual and does not treat the issue with the seriousness that it deserves. At the very least, any indication should have been made bearing on the circumstances actuating that defiance. But they take the court's order as if it was less than forceful. It was, therefore, submitted that under the circumstances, the third and fourth respondents cannot be heard; the papers that they have filed both ought to be expunged, and the matter proceed as unopposed.

Conversely, Mr *Mapuranga*, for the third and fourth respondents, submitted that the order was for the filing of papers, with the understanding that there was a time constraint and that filing would be permitted outside the court's working hours. He argued that the notice of opposition was indeed filed as per the order of the court outside of the court registry times. He stated that his instructing practitioners filed those papers outside of the court's registry times on 1 April 2026. He further stated that he sent a copy thereof to Mr *Hashiti* at 6:07 pm on 1 April 2026 after they had been filed. That was to enable him to consider them in preparing the

answering affidavit and heads of argument. Since that was not within the 4 pm deadline, he said he prayed for the court's condonation.

It was further argued that the heads of argument filed by the applicant were issued out of court time on 2 April at 6:09 p.m, and the set of heads had never been served on the respondents. He alleged that he was sent two sets of heads of argument, which had not been consolidated during the day. The respondents could only file their heads of argument after receiving those from the applicant's legal practitioners. The order of heads of argument is applicants first, respondents next.

In terms of the order, an answering affidavit was to be filed first, followed by the heads of argument. The answering affidavit was not filed until 7 April 2026. He further argued that it boggles the mind how the respondents could file heads of argument without receiving an answering affidavit. There was non-compliance by the respondents only in relation to the filing of heads of argument.

When the court queried whether counsel's argument was that the papers were compliant with the order and, therefore, properly before the court, counsel insisted that the opposition was indeed filed timeously. He maintained that it was filed timeously. As for the heads of argument, he contended that they could not have been filed before the applicant's answering affidavit had been issued and served on them. That they were not served with the heads of argument, and he only saw them over the Easter weekend, as he was looking into the file. He prepared the heads of argument, which were issued on 7 April. He submitted that there was indeed non-compliance in respect of the heads of argument, and he did not dispute that. He would pray for condonation, primarily on the grounds that the non-compliance resulted from an impossibility. A respondent cannot be asked to file heads before an applicant files an answering affidavit.

Mr *Mapuranga* then sought instructions from his instructing counsel before finalising his submissions. He went on to submit that he had to make a correction about the notice of opposition. He submitted that he apologised to the court as the notice of opposition was indeed filed out of time. He stated that he had to concede on this point. He was not aware of this fact until that time. He had not checked the dates and thought everything was in order. He further submitted that he prepared the notice of opposition and sent it to the instructing practitioners for signing on 1 April. He then made an instruction that, upon it being signed, they should let him

have a copy so that he could forward it to counsel for the applicants. He claimed he received a copy at 6 p.m and was under the impression that it had been issued. It had not. It was issued the following morning.

He further submitted that he conceded the notice of opposition was filed out of time. He was praying for the court's condonation in that respect. He argued that it was a fact that had come to his attention at that time. He further claimed that, when he saw the point in the heads of argument filed on 2 April, he was baffled, believing it was made disingenuously, as he had forwarded the opposition timeously. He also said he apologised in that respect as the notice of opposition was filed out of time and prayed for condonation.

Mr *Mubaiwa*, in reply, submitted that there was a concession that the third and fourth respondents' opposition was filed out of time. This was the point raised, and we should not have wasted all this time. Accordingly, there was a bar. He further submitted that counsel sought condonation, but he did not give any reasonable explanation for the non-compliance. In fact, what he placed before the court was a set of facts that warranted a denial of condonation. He said he drafted the opposition on 1 April when it was due on 2 April. So, he acted with diligence. He sent those papers to those who instruct him, and they sat on those papers. They did not file, although the papers were ready, and we are not told why they sat on those papers. We know that the alleged impossibility is a false claim regarding the failure to file the opposition on time, as the opposition was ready for signature. There is no explanation why the instructing attorneys sit on work that was ready.

Counsel also argued that there was deliberate non-compliance with the order in circumstances where compliance was sure and certainly possible. When the issue was disclosed, counsel did not confirm the true position with his instructing attorneys. He dealt with the issue casually and did not even consider the record he was dealing with. He failed to even ascertain the facts upon sighting the applicant's heads of argument. There was clear defiance in that, when the issue was raised, they brushed it aside. There was an attempt to suggest that the court's order contains terms beyond what it actually contains. That cannot have any consequence. An order of the court is complied with on its terms. See *Mauritius & Anor* v *Versapak Holdings (Pvt) Ltd* SC 02/22. The parties cannot immunise each other from complying with the terms of a court order.

He cited the case of *Chiwenga v Chiwenga*, SC 02/14, as authority for the proposition that parties cannot agree to depart from an order of court.

Mr *Mubaiwa* finally submitted that there was no basis for the condonation. No proper or reasonable explanation was given. The point *in limine* was with merit and ought to be sustained. All the papers filed by the third and fourth respondents ought to be expunged, and the matter proceeds unopposed.

ANALYSIS AND DETERMINATION

The point *in limine* concerns the non-compliance by the third and fourth respondents with the case management order granted by this court on 1 April 2026. The order was issued with the consent of the parties and essentially based on the timelines they had proposed themselves as to the filing of further papers. Paragraph (2) of the said court order clearly stated that "the third and fourth respondents shall file their opposing papers to the application before end of today, 1 April 2026". I found it strange that Mr *Mapuranga* would argue that the opposition was filed timeously on 1 April 2026 and in compliance with the court order. There should not have been any dispute about the date of filing, as reflected at p 158, being 2 April 2026. That is the date on which the notice of opposition and the opposing affidavit for the third and fourth respondents were filed. I agree that Mr *Mapuranga* clearly wasted the court's time arguing that the notice of opposition was filed in accordance with the court order on 1 April, when the record was clear that it was filed out of time on 2 April 2026. Apparently, he had not even properly considered his own papers. He belatedly conceded that the papers were filed out of time on the 2nd of April 2026, after having taken the court on a lengthy and completely unnecessary tangent, seeking to present an artificial argument that his papers were properly before the court.

I must state that a case management order governs how the matter progresses in respect of an urgent court application. The filing of further pleadings is governed by the order of the court. It is trite that once the court issues an order, it is binding on the parties and must be obeyed. In *Magauzi & Anor v Jekera* SC 54/22 at p 6, UCHENA JA said:

> "**When a court grants an order, all subsequent acts affecting the dispute between the parties rely on the court's order** and not the reason or facts the court based its judgment on. Execution of judgment debts is based on court orders and not the reason for which the court order was granted. **Therefore, a party or the parties cannot disregard a court order as they are bound by it**. In the case of *Chiwenga v Chiwenga* SC 2/14, it was stated that:

> "The law is clear that **an extant order of this Court must be obeyed or given effect to unless it has been varied** or set aside by this Court and not even by consent can parties vary or depart therefrom. See also *CFU v Mhuriro & Ors* 2000 (2) ZLR 405 (S).""" (*my emphasis*)

There are serious consequences for non-compliance with a court order. See *Equity Properties (Pvt) Ltd v Global BVI Ltd* HH 801/22 where the court made the following pertinent sentiments:

> "In deciding as I did, I remained alive to the fact that **the directions of TSANGA J are, no doubt, an order of court which the parties had no choice but to obey**. I was further persuaded by case authority which discussed the issue which the parties had placed before me. **It is, for instance, trite that when a court order provides a time limit within which to do something…such time limits ought to be followed. Failure to comply with such time limits leads to lapsing of the rights conferred therein**: *The Sheriff of the High Court of Zimbabwe v Madziro & Ors*, HH 670/15. It is a plain and unqualified obligation of every person against, or in respect of, whom the order is made by the court of competent jurisdiction to obey it, unless and until that order is discharged; and, as is known, two consequences flow from that obligation. The first one is that anyone who disobeys an order of court is in contempt and may be punished by committal or attachment or otherwise. The second is that no application to court by such person will be entertained unless he has purged himself of his contempt: *Artkinson v Artkinson* (1952) 2 All ER 567 (CA). By not complying with the order of TSANGA J, both the applicant and the respondent were, no doubt, in contempt of the court order. None of them could therefore be heard unless it purged itself of the contempt." (*my emphasis*)

There is no doubt that para (2) of the court order of 1 April 2026 was very clear. Thus, the court's intention was also clear from it that the third and fourth respondents were to file their papers by the end of the day on 1 April 2026. They did not. This was conceded by Mr *Mapuranga*, finally, after lengthy submissions insisting that the papers were properly filed on 1 April. The admission, therefore, resolved the point of law that indeed the third and fourth respondents' opposition was filed out of time. They failed to comply with the court order and were, therefore, automatically barred by operation of law and that non-suited them or rendered their purported opposing papers not properly before the court. This position was affirmed in *Mauritius & Anor* v *Versapak Holdings (Pvt) Ltd & Anor* (*supra*), where BHUNU JA had this to say:

> "[22] **The appellants' disregard of the time lines set out by the court a quo triggered an automatic bar shutting them out from being heard by operation of law**. Consequently, the appellants were effectively divested of their *locus standi* before the court upon default. That being the case, the court *a quo*'s finding that the appellants had no *locus standi* is beyond reproach.

> **That finding of fact effectively put the appellants out of court rendering it unnecessary to consider any submissions they would have made**. **This is for the simple but good reason that they were not entitled to be heard by the court *a quo* on any issue pertaining to the case**.
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> [23] **The appellants' disdain of the time lines laid down by a court of law could only be purged by that court on the merits in a proper application for condonation and extension of time within which to comply with the terms set out in the provisional order**. The appellant's withdrawal of that application sounded the death knell for any lawful reprieve for the appellants considering that the court *a quo* had already issued a substantive order confirming the provisional order." (*my emphasis*)

Once it was accepted that the third and fourth respondents had failed to comply with the court order and were barred, they could only be heard upon a successful application for condonation and extension of time to comply with the order of the court. It is trite that when a party fails to comply with a court order, he or she must seek condonation first. Thus, in *Sergeant Mhande 04737T & Anor* v *The Chairman of the Police Service Commission & 2 Ors* SC 63/18 at p 3, BERE JA (as he then was) said:

> "**It is the accepted position of the law that an applicant who has failed to comply with a given court order**, or infringed the rules of the court, **must seek to be condoned or pardoned for non-compliance first** before applying for reinstatement of their case. In the case of *Zimslate Quartize (Pvt) Ltd & Others v Central African Building Society* SC 34/17 ZIYAMBI JA, when dealing with an almost similar matter, remarked as follows: -
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> > "**An applicant who has infringed the rules of the court before which he appears, must apply for condonation and in that application explain the reasons for the infraction**. He must take the court into his confidence and give an honest account of his default in order to enable the court to arrive at a decision as to whether to grant the indulgence sought. **An applicant who takes the attitude that indulgence, including that of condonation, are there for the asking does himself a disservice as he takes the risk of having his application dismissed**."
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> > …It is in my view jumping the gun to seek reinstatement of an appeal before first seeking condonation and extension of time in situations where one has clearly infringed the court rules or an order of court as in this case." (*my emphasis*)

After the late concession that the opposing papers were filed out of time, Mr *Mapuranga* then sought condonation. The application was half-hearted to say the least. He took a very casual approach as if condonation is there for the mere asking. It is trite that condonation is an indulgence the grant of which is within the discretion of the court. The court can only exercise its discretion in favour of granting the indulgence once the well-established factors or requirements are satisfied. There must be good and sufficient cause for the indulgence of condonation to be

granted. See Van Winsen & Herbstein, *The Civil Practice of the Supreme Court of South Africa*, 4th Ed at pp. 897-898, where the authors stated that:

> "**Condonation of the non-observance of the rules is by no means a mere formality**. It is for the applicant to satisfy the court that there is sufficient cause to excuse him from compliance. **The court's power to grant relief should not be exercised arbitrarily and upon the mere asking, but with proper judicial discretion and upon sufficient and satisfactory grounds being shown by the applicant**. In the determination whether sufficient cause has been shown, the basic principle is that the court has a discretion, to be exercised judicially upon a consideration of all the facts, and in essence it is a matter of fairness to both sides in which the court will endeavour to reach a conclusion that will be in the best interests of justice. The factors usually weighed by the court in considering applications for condonation include the degree of non-compliance, the explanation for it, the importance of the case, the prospects of success, the respondent's interest in the finality of his judgment, the convenience of the court and the avoidance of unnecessary delay in the administration of justice." (*my emphasis*)

The above position was further affirmed in *Friendship* v *Cargo Carriers Ltd & Anor* SC 01/13.

The factors the court must consider in determining whether to grant condonation are well-settled. These include that the delay was not inordinate; there is a reasonable explanation for the delay; there are prospects of success on the matter; and there is no possible prejudice to the other party if condonation is granted. The list of factors is not exhaustive, but they are considered not individually but cumulatively, so that an unacceptable explanation coupled with a short delay may be complemented by very good prospects of success. The law was also restated in *Doves Funeral Assurance (Pvt) Ltd* v *Harare Motorway (Pvt) Ltd & Ors* SC 64/23, where MAKONI JA had this to say:

> "The law regarding condonation for noncompliance with the rules is a well-trodden path in our jurisdiction. If authority is required for this settled position, for the benefit of the applicant, see *Forestry Commission* v *Moyo* 1997 (1) ZLR 254 (S), *Kodzwa v Secretary for Health & Anor* 1999 (1) ZLR 313 (S), *Machaya v Munyambi* SC 4/05*; Ester Mzite v Damafalls Investments (Pvt) Ltd* SC 21/18.

[21] The factors to be considered in such an application are as follows:

a. That the delay involved was not inordinate, having regard to the circumstances of the case;
b. That there is a reasonable explanation for the delay;
c. That the prospects of success should the application be granted are good; and
d. The possible prejudice to the other party should the application be granted.

> [22] Reasonable prospects of success on appeal features as one of the requirements for the grant of an application for condonation. It is an important consideration which is relevant to the granting of condonation, although not necessarily decisive."

In the *Doves Assurance* case (*supra*), MAKONI JA in para 32 concluded that:

> "**The application, falling short of the requirements of an application, such as the present one, ought to be dismissed**. Allowing the matter to proceed to the merits would be a waste of valuable judicial resources which should be directed to worthy causes." (*my emphasis*)

In *casu*, there was absolutely no attempt at all by Mr *Mapuranga* to address the essential factors or requirements which can trigger the exercise of this court's discretion to grant condonation. He approached the issue as if condonation is a right obtainable on demand. There was no attempt to address even the prospect of success or the possible prejudice if the application is granted. While the issue of prospects of success is not necessarily decisive, it is one such requirement that the court ought to consider, along with the other factors, in an application of this nature. The court had no obligation to sift through the record looking for such prospects of success. They were supposed to be canvassed in the application itself. He merely addressed me regarding the explanation for the delay. He sought to give that explanation from the bar. He could not adduce any evidence from the bar.

While the delay itself was clearly not inordinate, in my view, the explanation tendered cannot be said by any stretch of the imagination to be reasonable or acceptable. Mr *Mapuranga* alleged that he prepared the papers well on time. He claimed he forwarded them to the instructing attorney and was not aware until the time of the hearing that the papers had been filed out of time. In fact, he had insisted they were properly filed, only to be advised at the tail end of his submissions that they were filed on 2 April 2026. It is difficult to understand how he could maintain that assumption, through the hearing to that point, given the face of the notice of opposition itself indicating that the papers were filed on 2 April, and also in the face of a preliminary point taken and argued on the same issue in the applicant's heads of argument filed on 2 April 2026. The explanation was inadequate and unbelievable.

Further, there was no explanation whatsoever from the instructing attorneys as to why they could sit on the papers and not file them if indeed they received them from Mr *Mapuranga* on 1 April 2026 before the close of business. He laid blame on the instructing attorneys for

sitting on the papers, despite having been prepared and made available to them for filing on 1 April. It is trite at law that where a legal practitioner is blamed for any non-compliance or default, there must be a confirming or supporting affidavit from the legal practitioner explaining the non-compliance or default. In the absence of such a confirming affidavit, any explanation would be considered unacceptable. See *Jockstar Investments (Pvt) Ltd* v *Dzumbira & Anor* SC 104/25 at p 8, where MATHONSI JA held as follows:

> "**It is now settled as well that, where the failure to comply with the rules is blamed on the applicant's legal practitioner, a supporting affidavit to that effect must be elicited from the said legal practitioner.** This was stated in *Riozim Limited* v *Dixon-Warren N.O* SC 21/23 at p 9 thus:
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> > "Further, having blamed the legal practitioner for its failure to comply with the rules, the applicant failed to furnish this Court with a supporting affidavit of the legal practitioners concerned. In this regard see *Diocese of Harare* v *The Church of the Province of Central Africa* SC 9/10. **The applicant's explanation cannot therefore be adequate in the absence of a supporting affidavit from the legal practitioner who is blamed for the non-compliance with the rules**."" (*my emphasis*)

There was no confirming affidavit from the respondents' legal practitioners explaining why the opposition was not filed in compliance with the court order. The explanation for the delay tendered by Mr *Mapuranga* was accordingly unacceptable. They simply ignored the court order as if it was of no consequence. The issue was raised in the heads of argument filed on 2 April 2026, and they made no attempt to promptly seek condonation at the commencement of the proceedings. They could not have taken the court on a fruitless journey when the record was clear that the opposition was not filed on 1 April as ordered by the court. This cavalier approach to compliance with extant orders of court cannot be acceptable.

The third and fourth respondents' application for condonation completely fell short of the requirements of an application of this nature. The other requirements for condonation, such as prospects of success and possible prejudice, among others, were not canvassed at all. As stated in *Doves Assurance* (*supra*) in para 32, an application that fell short of the requirements of an application for condonation ought to be dismissed. It would be bad in law. Accordingly, I will dismiss the belated application for condonation.

In the circumstances, the third and fourth respondents are barred for non-compliance with the order of this court, and their opposition is, therefore, fatally defective and not properly before

the court. Their opposing papers are expunged from the record. Accordingly, they have no right of audience in the circumstances, and the application shall proceed unopposed.

THE UNOPPOSED APPLICATION

Since counsel for the first and second respondents had confirmed that they were not opposed to the application, I proceeded to hear from counsel for the applicant. Mr *Hashiti* submitted that, in the circumstances, without much ado, the applicant prayed for an order in terms of the draft. The first and second respondents had conceded to the application. In light of their concession and the fact that they are the primary respondents, the matter ought, therefore, to succeed on their concession and the order granted. The applicant abandoned its prayer for costs on a punitive scale after the court sought justification for such a scale.

The provisions of subsection (4), as read with subsection (5), of s 38 of the Cemeteries Act were not complied with, rendering the decision to exhume the remains of the late Johanne Masowe a violation of s 3(1) of the Administrative Justice Act and, therefore, a nullity. It could not stand. Subsections (4) and (5) of s 38 provide as follows:

> "4) Subject to subsection (5)—
> (a) **the Minister or any person authorized by him**; or
> (b) **with the approval of the Minister, a local authority or a local board** established in terms of the Urban Councils Act *[Chapter 29:15]*;
>
> **may reverently remove or cause to be removed the human remains,** memorials and monuments in any closed cemetery from that cemetery to another cemetery.
>
> (5) **Notice of intention to act** in terms of subsection (4) **shall** be published once a month for three consecutive months in the *Gazette* and in a newspaper circulating in the area where the closed cemetery is situated and **any person may lodge with the Minister a written objection to the proposed action** within three months of the first publication of the notice in the *Gazette*." (*my emphasis*)

The law above makes it clear that it is the Minister who has statutory authority to direct the exhumation of human remains. He is the only person who is empowered to authorise any other person, the local authority, or the local board to make the decision authorising any exhumation. The authority lies with him or her, and if there is anyone who purports to act or make that decision, he or she must have been duly authorised by the Minister to do so. The first respondent confirmed in her papers that she did not comply with the requirements of s 38(4) as read with subsection (5) but rather merely acted to authorise the exhumation on the instructions

of the Permanent Secretary in the second respondent's Ministry. See said letter dated 19 February 2026 at p 145. There was no doubt, therefore, that the decision of 10 March 2026 made by the first respondent was not made by the second respondent. It was clear that she was not duly authorised by the Minister himself to make the impugned decision. The decision, made without statutory authority, was unlawful and invalid. That also violated s 3(1) of the Administrative Justice Act, which requires an administrative authority to act lawfully.

In terms of subsection (5) of s 38 of the Cemeteries Act, which is worded in peremptory language, before acting in terms of subsection (4), a notice thereof must be published in the Gazette and in a newspaper circulating in the area where the closed cemetery is situated once a month for three consecutive months. Objections must then be lodged with the Minister within three months of the first publication of the notice in the Gazette. This was never done. The first respondent merely acted on the instructions of the Permanent Secretary, and she had erroneously taken a position that there was an order for the exhumation issued by this court and the Supreme Court. There was no such order; the courts had merely confirmed the third and fourth respondents' procedural right to seek exhumation before the Minister, subject to due process being followed. There was no such due process followed before the responsible authority, the Minister assigned to administer the Act, the second respondent, for the decision in question to stand.

I also note in passing that the notice at p 73 purported to have been issued in terms of s 38 of the Cemeteries Act is not the notice as contemplated by s 38(5) of the Act. The s 38(5) notice is published by the Minister or any person, local authority, or local board duly authorised by the Minister and not by the person seeking the exhumation. The public notice at p 73 was issued by the third respondent himself, calling for objections to be lodged with him within 30 days. That is not the process undertaken in terms of s 38(5) of the Cemeteries Act.

The provisions of s 38(5) of the Cemeteries Act are peremptory. The law is clear that anything done contrary to peremptory statutory provisions is a nullity. KUDYA JA set out this clearly in *Minister of Justice, Legal & Parliamentary Affairs* v *Muskwe & Ors* SC 67/22 at pp 20-21where he said:

> "In the present matter, the application for the sanctioning of the scheme of arrangement was filed in the High Court on 3 May 2017. It was then sanctioned on 10 May 2017. The appellant had 30 days to 2 June 2017 to exercise his s 2(a) right to place the Company under an RO. He, however,

> issued the impugned RO on 26 October 2018. He did so not within 30 days but within 541 days of the presentation of the s 191 (2) application to the High Court. He was woefully out of time.
>
> **It is well settled in this jurisdiction that any action done in contravention of the peremptory provisions of a statute is invalid**. See *Guoxing Gong v Mayor Logistics (Pvt) Ltd* SC 2/2017 at p 6, *Mtetwa & Anor v Mupamhadzi* 2007 (1) ZLR 253 (S) at 255B, *Schierhout v Minister of Justice* 1926 AD 99 at 109 and Maxwell *Interpretation of Statutes*, 7 ed p 316." (*my emphasis*)

See also *Mukwaira* v *Minister of Lands, Agriculture, Water, Fisheries & Rural Resettlement* SC 15/24.

In the circumstances, there was no valid decision for the exhumation of the remains of the late Johanne Masowe made in terms of the provisions of s 38 of the Act. The proceedings before the first respondent were a nullity. The consequential relief sought is for a lawful process in compliance with subsections (4) and (5) to be carried through. The first and second respondents' concession that the impugned decision was unlawful was properly made in the circumstances. There was, therefore, no reason for me not to grant the relief sought. Costs shall follow the cause.

I accordingly granted the application with costs against the third and fourth respondents jointly and severally, the one paying, the other to be absolved.

DEMBURE J: ……

Venturas & Samukange, applicant's legal practitioners
Civil Division of the Attorney-General's Office, first and second respondents' legal practitioners
Mushangwe & Company, third and fourth respondents' legal practitioners